

ZESA HOLDINGS (PVT) LTD



APPLICATION PROGRAMMING INTERFACE (API) NON-DISCLOSURE AGREEMENT

1. INTRODUCTION

Application Programming Interface (API) is a set of defined rules that enable different applications to communicate with each other. The ZESA Holdings Private Limited (ZESA) API Terms of Use form a Non-Disclosure Agreement (the “Agreement”) between ZESA and the party (including individual, organisation or otherwise) that requires access to or use of any of ZESA’s APIs. By accessing or using any of ZESA’s API, the party agrees to be bound by the terms of this Agreement. This agreement applies to the ZESA Group of Companies namely ZESA Holdings, Zimbabwe Power Company (ZPC), Zimbabwe Electricity Transmission and Distribution Company (ZETDC), ZESA Enterprises (ZENT) and Powertel.

2. PARTIES TO THE AGREEMENT

ZESA runs a variety of technology solutions to support its electricity generation transmission, distribution and ancillary services business.

The “Developer” is any party that desires to obtain access and make calls to ZESA’s APIs and to access certain data within ZESA to enable the Developer Applications to interface, query or interoperate with the ZESA solutions and systems. ZESA is willing to provide such access subject to the terms and conditions herein. Such provisions are subject to change based on the need for ZESA to continuously provide adequate safeguards for its business. The changes may also be made without notice.

3. CERTAIN DEFINED TERMS

- a) “Developer Data” means all data created by Developer or a Developer Application.
- b) “ZESA API” means any form of machine accessible application programming interface provided by ZESA that provides access to or enables interaction with a ZESA service, and includes all associated documentation, tools, and sample code, and executables of any of the foregoing.
- c) “ZESA Data” means all data created by ZESA or the ZESA solution, whether or not derived from ZESA.

4. THE AGREEMENT

In consideration of the foregoing and the mutual promises made herein, the parties agree as follows.

4.1 Acceptance of Terms

You are deemed to be entering into this Agreement and accept all of its terms if you access or use any ZESA API.

4.2 Grant of License

Subject to the terms in this Agreement, ZESA hereby grants the Developer a limited, non-exclusive, non-assignable, non-transferable, revocable license to

- a) install, use, and make calls to certain ZESA APIs provided for general access to the developer community for the sole purpose of developing, testing, and supporting

elements of the Developer Application that interface with and interoperate with a ZESA solution, and

- b) use, host, store, reproduce, communicate and publish portions of the ZESA Data through the Developer Application solely for the benefit of the Provider to which such ZESA Data relates.

4.3 Restrictions on use of APIs

In addition to any other limitations set forth in this Agreement or imposed by law, Developer will not:

- a) Use any ZESA API in a way that could impair, harm or damage ZESA, any ZESA service or application, or any other person's use of a ZESA API, service or application, or that exceeds the API use restrictions set forth in any documentation, where applicable;
- b) Use any ZESA API to disrupt, interfere with, or attempt to gain unauthorised access to services, servers, or networks connected to, or accessible through, any ZESA API, including those of ZESA or any other provider;
- c) Reverse engineer, decompile, or disassemble any ZESA API or software product, or redistribute, resell or sublicense access to any portion of a ZESA Solution;
- d) Use any ZESA API in a way that threatens the integrity, performance or reliability of any ZESA API or any portion of a ZESA Solution, including performance or stress testing, or in any manner that works around any technical limitations incorporated into a ZESA API;
- e) Request from a ZESA Solution any Provider Data that is not required for the Developer Application to operate in accordance with its documentation and the direction of the applicable Provider, or for which it does not have a valid grant of access from the applicable Provider;
- f) Import or write any personally identifiable information (as such terms are defined by any applicable law) or production data of any sort into a testing or non-production environment established by ZESA for integration testing or similar use by developers;
- g) Resell, sublicense or, except as expressly contemplated in this Agreement, distribute any Provider Data or ZESA Data;
- h) Share any access credentials provided by ZESA with any third party, or use any such credentials for a Provider or practice other than the one identified by ZESA for such purpose;
- i) Falsify or alter any identifier assigned to a Developer Application, or otherwise obscure or alter the source of queries coming from a Developer Application; or
- j) Use any ZESA API or any ZESA Data in a manner that violates any applicable law or third party right, including government established laws pertaining to the privacy and protection of personally identifiable information.

4.4 Promotion

Developer and ZESA shall each be permitted to disclose to Providers the existence of this Agreement and that Developer has received ZESA's limited authorisation for the Developer Application to interface and interoperate with the ZESA Solutions. Neither party shall make any misleading statements regarding the other's products or services, including any inaccurate description or unauthorised warranty.

4.5 Support and Maintenance

ZESA will use commercially reasonable efforts to provide Developer with access to current documentation for the ZESA APIs. ZESA shall not be required to provide training or other support relating to Developer's use of any ZESA API or ZESA Data, and ZESA has no obligation to update or modify the ZESA APIs.

4.6 Modifications

Developer acknowledges and agrees that ZESA may, in its sole discretion, update or modify all or any portion of the ZESA APIs and that such updates or modifications may remove or restrict previously existing functionality or require Developer to update or modify its Developer Applications. ZESA will endeavour to provide at least three (3) months' advance notice if it intends to discontinue or make non-backwards compatible changes to a ZESA API, unless it determines, in its reasonable judgment, that:

- a) doing so would violate or conflict with any then-current law or third-party relationship, or
- b) doing so could create a security risk or substantial economic or material technical burden to any Person.

4.7 Confidentiality of Information

4.7.1 Confidential Information or ZESA Information refers to any non-public, proprietary, or sensitive information disclosed or made available by one party (the "Disclosing Party") to the other party (the "Receiving Party"), whether orally, in writing, electronically, or in any other form, that is designated as confidential or that reasonably should be understood to be confidential given the nature of the information and the circumstances of disclosure. Confidential Information may include, but is not limited to, trade secrets, financial information, business strategies, customer data, technical specifications, and any other information that is marked as confidential or identified as such.

4.7.2 During the Term, Developer may obtain access to ZESA Information. Developer agrees not to use such ZESA Information except as expressly contemplated by this Agreement, and to not disclose it to any third party without ZESA's prior written consent. Notwithstanding the foregoing, disclosure is permitted to the extent required by law or court order, provided Developer first gives reasonable notice to ZESA (unless prohibited by law or court order) and, if requested, provides reasonable assistance in obtaining a protective order. ZESA Information does not include information that Developer independently develops (without use of any other ZESA Information), that was rightfully given to Developer by a third party without any conflicting obligation of confidentiality, or that becomes public through no fault of Developer.

4.8 Breach of Confidentiality

4.8.1. Obligations of Confidentiality

The Receiving Party acknowledges and agrees that any unauthorized use, disclosure, or breach of the Confidential Information constitutes a material breach of this Agreement.

4.8.2. Notification of Breach

In the event that the Receiving Party becomes aware of any actual or potential breach of confidentiality, it shall immediately notify the Disclosing Party in writing, providing all relevant details regarding the breach.

4.8.3. Remedies for Breach

Upon a breach of confidentiality by the Receiving Party, the Disclosing Party shall be entitled to seek any and all remedies available at law or in equity. Such remedies may include, but are not limited to, injunctive relief, monetary damages, and equitable remedies.

4.8.4. Termination

In the event of a material breach of confidentiality, the Disclosing Party shall have the right to terminate this Agreement immediately upon written notice to the Receiving Party. Termination shall not prejudice any other rights or remedies that the Disclosing Party may have under this Agreement or applicable law.

4.9 Ownership Rights

Except as expressly provided for in this Agreement, ZESA retains all right, title and interest in the ZESA APIs, the ZESA Solution, the ZESA Data, the ZESA Information, and all of ZESA's other intellectual property, data and technology, and Developer retains all right, title and interest in the Developer Application, the Developer Data and all of its other intellectual property, data and technology. Notwithstanding anything to the contrary herein, ZESA shall have the right, without limitation or obligation to Developer, to use and commercialise any feedback provided by Developer to ZESA about the ZESA APIs or ZESA Solutions.

4.10 Non-exclusive

This Agreement is non-exclusive, and nothing herein shall prohibit ZESA from developing any product or service, including those that may be similar to or competitive with the Developer Application.

4.11 Audit Right

Developer agrees that ZESA may monitor use of the ZESA APIs to ensure compliance with the terms of this Agreement, and Developer will not take any action to interfere with such monitoring. In addition, ZESA shall be permitted, upon reasonable advance notice, to inspect and audit the files and records of Developer as necessary to verify compliance with this Agreement, and Developer shall cooperate with all reasonable requests in conducting any such audit.

4.12 Term and Termination; Suspension

The term of this Agreement shall commence on the Effective Date and will continue until terminated in one of the following manners. Developer may terminate this Agreement upon written notice at any time. ZESA may terminate this Agreement and Developer's use of all ZESA API's :-

- a) for any reason, upon ninety (90) days' prior written notice,

- b) on thirty (30) days' prior written notice in the event of a breach by Developer of any term of this Agreement
- c) if ZESA determines, in its sole discretion, that Developer's use of the ZESA API is causing an interruption or degradation in the performance of any ZESA Solution, ZESA may, without liability to Developer or any other party, temporarily suspend Developer's access to the ZESA APIs until such time as ZESA is reasonably assured that such interruption or degradation shall no longer occur.

4.13 Effect of Termination; Survival

Immediately upon the termination of this Agreement for any reason,

- a) ZESA shall cease all use of Developer's Marks
- b) Developer shall cease all use of the ZESA APIs, the ZESA Data, the ZESA Information, and ZESA's Marks, and
- c) all licenses granted in this Agreement shall terminate.

FOLLOWING ANY TERMINATION OR EXPIRATION OF THIS AGREEMENT, DEVELOPER SHALL NOT USE OR RETAIN ANY PROVIDER DATA OBTAINED THROUGH A ZESA API WITHOUT THE EXPRESS PERMISSION, UNDER SEPARATE AGREEMENT, FROM EACH APPLICABLE PROVIDER. UPON REQUEST BY ZESA, DEVELOPER SHALL CERTIFY IN WRITING ITS COMPLIANCE WITH SUCH RESTRICTION.

4.14 Indemnification

Developer shall indemnify and hold ZESA, its affiliates, and each of their respective executives, directors, officers, employees and agents, together with each of their respective successors and assigns, harmless against any and all claims, demands, liabilities, damages, losses, costs, fees (including legal fees) and expenses, of any type whatsoever relating to a third-party claim arising out of

- a) Developer's use of a ZESA API or breach of this Agreement,
- b) any data or content routed by Developer or its customers through the Developer Application, or
- c) any claim that the Developer Application infringes the patent, copyright, trademark or other intellectual property right of a third party (except to the extent such claim is based on the ZESA API).

Any claim shall be made promptly following the event giving rise thereto, provided that any failure or delay in providing such notice shall not relieve Developer of its obligations except to the extent actually prejudiced thereby. In the event of any claim for indemnity hereunder, Developer shall, if requested by ZESA in writing, promptly assume the defense thereof, at its own expense, with counsel reasonably acceptable to ZESA. Regardless of which party is defending, each party shall cooperate with the other as reasonably requested in connection with the indemnified matter, shall keep the other reasonably apprised of the status thereof, and shall not enter any settlement or compromise that creates any obligation or liability or admits any wrongdoing on behalf of the other party without the consent of such other party, not to be unreasonably withheld, conditioned or delayed.

4.15 General Provisions.

a) Subsidiaries and affiliates

Developer agrees that certain ZESA APIs or portions thereof may be provided by subsidiaries or affiliates of ZESA and, to the extent so provided, this Agreement also governs the provision thereof and the relationship between Developer and such entities.

b) Assignment

Developer may not assign or delegate this Agreement, in whole or in part, without the prior written consent of ZESA. ZESA may assign this Agreement without restriction in the event of any sale of all or substantially all its assets or any merger, or similar transaction.

c) Severability

If any provision of this Agreement is determined to be unenforceable, the enforceability of the remaining provisions will not in any way be affected or impaired, and the parties shall substitute an enforceable provision for the affected provision which approximates the intent and economic effect of the affected provision as closely as possible.

d) Relationship of the Parties

The parties hereto are each independent contractors of the other, and nothing contained herein shall be construed as creating any partnership, joint venture, or other form of joint enterprise between the parties.

e) Amendment and Waiver

In order to be binding, any amendment or modification of any of the provisions of this Agreement must be in writing and signed by a duly authorised representative of each party. In the event of a conflict between the terms hereof and any such written modification, the document later in time shall prevail. Any waiver of a right set forth in this Agreement shall only be effective if made in writing by the party against whom it is to be enforced. The waiver of any breach or delay in enforcing any provision of this Agreement shall not operate as a waiver of any subsequent breach or right to enforce the same.

5. SIGNATURES

Monalisa F Chaniwa
.....
NAME

HARARE
.....
REGION


.....
SIGNATURE

23/01/2024
.....
DATE